

TENTATIVE RULING

Case: **Hendrix v. Ebay Inc.**
 Case No. CV2026-0240

Hearing Date: **June 11, 2026** **Department Fourteen** **9:00 a.m.**

Defendant eBay Inc.’s amended motion to compel arbitration and stay action is **GRANTED**. (Code Civ. Proc., § 1281 et seq.) “A party seeking to compel arbitration of a dispute bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (*Jenks v. DLA Piper Rudnick Gray Cary US LLP* (2015) 243 Cal.App.4th 1, 8.) Defendant has established the existence of an arbitration agreement between defendant and plaintiff Shannon Hendrix. (*Ibid.*; Code Civ. Proc., § 1281.2; Conlin decl., ¶¶ 8-18, Exhibits A & B.) Further, plaintiff’s causes of action, in the first amended complaint (“FAC”), fall within the scope of the arbitration agreement. (*Id.*, ¶¶ 4 & 8-9, Exhibit B, § 19; see FAC, ¶¶ 8, 21, 24, 28, 93-94, & 97-98.) Plaintiff has failed to show that a defense exists, which would prevent the Court from compelling arbitration. (See *Jenks, supra*, Cal.App.4th at p. 8; *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.)

As to defendant eBay Inc., this case is stayed, pending the completion of arbitration. (Code Civ. Proc., § 1281.4.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Kakar v. Ford Motor Company**
Case No. CV2024-3284

Hearing Date: **June 11, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Farida Kakar's motion for attorney's fees for time actually expended and reasonably incurred is **DENIED WITHOUT PREJUDICE**. (Civ. Code, § 1794, subd. (d).) Plaintiff failed to provide timely notice of the hearing date and time to defendant. (Code Civ. Proc., §§ 1010, 1005, subd. (b); Cal. Rules of Court, rule 3.1110(b); *Bohn v. Bohn* (1913) 164 Cal. 532, 536-537; see also Notice of motion, p. 1; Opposition, p. 11.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.